



DEPARTMENT OF THE NAVY
NAVAL SEA SYSTEMS COMMAND
1333 ISAAC HULL AVE SE
WASHINGTON NAVY YARD DC 20376-0001

IN REPLY REFER TO

CJ&A No. 22,121
Code: SEA 02223

CLASS JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity

The Contracting Activity is the Naval Sea Systems Command (NAVSEA), Shipbuilding Contracts Division (SEA 022)

2. Description of Action Being Approved

Approval of a sole-source contract modification for the Detail Design and Construction (DD&C) of [REDACTED] Yard Repair, Berthing and Messing Barge (YRBM), to be awarded to [REDACTED] Authority to act under this class justification expires on November 30, 2027.

3. Description of Supplies/Services

The US Navy has an urgent need for improved sailor accommodations during ship repairs and overhauls, a need emphasized by Congress through a special appropriation in the FY24 NDAA. This [REDACTED] funding will allow the Navy to procure [REDACTED] YRBM (Yard, Repair, Berthing, and Messing) craft. Recognizing the ongoing need for suitable accommodations, Congress may explore funding for an additional YRBM craft in the [REDACTED]. If funded and appropriated, this would enable the Navy to procure a second craft to further improve living conditions for sailors during ship maintenance.

YRBM crafts are non-self-propelled barges designed to be docked pierside, providing berthing and messing facilities for up to [REDACTED]. They are essential for supporting a range of ships, including destroyers, cruisers, littoral combat ships, and submarines, during their maintenance periods. The YRBM crafts will be designed and constructed to commercial standards, classed to American Bureau of Shipping (ABS) Guide for Building and Classing Accommodation Barges, maximize use of Commercial-Off-The-Shelf (COTS) equipment, and comply with other Regulatory Body regulations, as appropriate. It will be procured as a commercial product, as have all other YRBM craft delivered to-date.

This approach ensures a swift and efficient solution to a critical need, highlighting Congressional recognition of the urgency and the Navy's commitment to rapidly improving the quality of life for its sailors during ship maintenance cycles.

4. Statutory Authority Permitting Other Than Full and Open Competition

In accordance with 10 U.S.C. § 3204(a)(1), NAVSEA has determined that the required YRBM's are available from only one responsible source and no other supplies or services will satisfy agency requirements. Per 10 U.S.C. §

3204(b), as implemented by FAR 6.302-1(a)(2)(ii), "[s]upplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in . . . [u]nacceptable delays in fulfilling the agency's requirements."

5. Rationale Justifying Use of Cited Statutory Authority

NAVSEA has determined that the required YRBMs are only available from one source in accordance with 10 U.S.C. § 3204(b) because YRBMs are highly specialized equipment originally developed and produced by the incumbent, Conrad, and award to another source would likely result in unacceptable delays in fulfilling NAVSEA's requirement.

The Navy requires additional Yard Repair Berthing and Messing (YRBM) barges to address critical shortfalls in sailor living conditions, as identified by the [REDACTED]. These barges are not simply accommodations; they are highly specialized platforms specifically designed and engineered to meet the unique and demanding needs of a large number of sailors living aboard during ship maintenance periods. Awarding this contract to any other source, unfamiliar with these specific requirements, would result in unacceptable delays and potentially compromise the functionality of the vessels, jeopardizing sailor readiness and well-being.

While individual components of the YRBMs might be commercially available, the integrated system represents a highly specialized solution. [REDACTED], the incumbent, possesses intimate knowledge of these specialized requirements, gained through their experience designing and building the current YRBMs. Leveraging this expertise, Conrad can deliver the required barges within a [REDACTED] from contract award, minimizing the impact on the user's operational needs.

Conversely, pursuing a competitive contract, while potentially identifying other shipyards, would inevitably introduce a significant delay—a minimum of [REDACTED] for contract finalization alone. This delay, compounded by the new supplier's inevitable design and familiarization phase for such highly specialized vessels, would result in a total timeline of at least [REDACTED] to deliver the YRBMs. This is drastically beyond the timeframe achievable through a sole-source award to Conrad—nearly [REDACTED] the delivery time—and would leave sailors in unacceptable living conditions for an unacceptably lengthy period, severely impacting morale and readiness. Therefore, procuring the [REDACTED] YRBMs solely from [REDACTED], capitalizing on their existing expertise and production capabilities, represents the only viable option to meet the urgent need and ensure timely delivery of these critical assets.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

The proposed acquisition was synopsized via Sources Sought Notice on Contract Opportunities in the SAM.gov website on February 5, 2025, and two responses of interest were received. Based on the responses received, neither of the two sources demonstrated the necessary capabilities to meet the requirements for building the specified crafts. One response came from [REDACTED] located in [REDACTED], which primarily focuses on maintenance

and repair services. The second response was from [REDACTED] located in [REDACTED] that specializes in providing parts such as joints and fans. Consequently, neither of these sources can be considered suitable for fulfilling the requirements to build the craft. No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than Conrad to provide the required supplies and services.

7. Determination of Fair and Reasonable Costs

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this CJ&A will be fair and reasonable.

8. Actions to Remove Barriers to Competition

The Navy is planning an [REDACTED] contract award for the next competitive acquisition for additional YRBM craft.

CERTIFICATIONS AND APPROVAL

TECHNICAL/ REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting data, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE

  
Signature Name (Print) and Title (Code) Phone No. Date

REQUIREMENTS COGNIZANCE

  
Signature Name (Print) and Title (Code) Phone No. Date

LEGAL SUFFICIENCY REVIEW (NMCAG 5206.303(90))

I have determined this justification is legally sufficient.

  
Signature Name (Print) and Title (Code) Phone No. Date

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

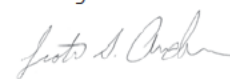
I certify that this justification is accurate and complete to best of my knowledge and belief.

  
Signature Name (Print) and Title (Code) Phone No. Date

APPROVAL BLOCK (FAR 6.304 for Approving Official)

Upon the basis of the above justification, I hereby approve, as Designee of the Head of the Contracting Activity, the solicitation of the proposed procurement(s) using of other than full and open competition, pursuant to the authority of 10 U.S.C. 2304) (c) (2).

Director, Shipbuilding Contracts, SEA 022

 
Mr. Scott Anderson Date